

51	Matthews vs. Global Auto Trend, Inc. 22-01252051	Motion to Enforce Settlement The Motion to Enforce Settlement brought by Defendant Pacific City Bank is DENIED. Under section 664.6, “[i]f parties to pending litigation stipulate, in writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. (Civ. Proc. Code, § 664.6, subd. (a).) There is no dispute that a valid and enforceable written Settlement Agreement was entered into, between the parties. (See ¶4 of An Declaration; See also Opposition: 5:14-15 [“Ms. Matthews’ position has always been that the settlement agreement is valid and enforceable.”]) Noting that Plaintiff previously sought to enforce the Settlement Agreement, Defendant argues that Plaintiff cannot “selectively disavow it as to PCB” (Motion: 6:4-6); however, Plaintiff makes no such attempt. Instead, Plaintiff disputes whether, under the terms of the agreement, Defendant is entitled to judgment. Defendant seeks a determination “that Plaintiff’s claims against PCB were released under the Settlement Agreement” (Motion: 1:10-11); however, per the plain language of the Settlement Agreement, release was contingent upon receipt of “all of the consideration set forth in this Agreement.” (¶4 of An Declaration and Exhibit 1 thereto, at §7.) It undisputed that “Global Auto breached the Settlement Agreement by failing to make the required payments to both Plaintiff and PCB.” (Motion: 3:5-6; See also ¶6 of Declaration of An Declaration and ¶11 of Matthews Declaration.) In light of the above, the order sought by Defendant is not “pursuant to the terms of the settlement,” as required. “[T]he power of the trial court under Code of Civil Procedure section 664.6...is extremely limited. [¶]...The court is powerless to impose on the parties more restrictive or less restrictive or different terms than those contained in their settlement agreement.” (<i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 790.) “[T]he trial court is under a duty to render a judgment that is in exact conformity with an agreement or stipulation of the parties...It is not the province of the court to add to the provisions thereof [citations]; to insert a term not found therein [citations]; or to make a new stipulation for the parties.” (<i>Id.</i> at p. 792.) Similarly, in considering approval of a settlement under Code of Civil Procedure section 664.6, a court cannot “add to or modify an express term of the settlement.” (<i>Leeman v. Adams Extract & Spice, LLC</i> (2015) 236 Cal.App.4th 1367, 1375.) Here, entering judgment in favor of Defendant based on a finding Plaintiff’s claims were released would essentially rewrite the terms of the Settlement Agreement, to remove the condition precedent of payment. Defendant acknowledges the above, within its Reply: “PCB acknowledges that as a matter of contract interpretation, the release was contingent upon payment and that Global’s nonperformance prevented the release from becoming operative.” (Reply: 2:15-17.)
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		Instead, Defendant asserts Plaintiff's claims are barred by the defenses of judicial and/or equitable estoppel. (See Motion: 6:15-9:12.) However, these arguments extend well beyond Code of Civil Procedure section 664.6, under which judicial power is "extremely limited" to entering judgment "pursuant to the terms of the settlement." (<i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 790; See also Code Civ. Proc., § 664.6, subd. (a).) Defendant cites no authority which supports granting relief pursuant to Code of Civil Procedure section 664.6, based on estoppel principles.
54	Vasquez vs. NGL Logistics, LLC 26-01557902	Motion for Leave to Intervene StarStone National Insurance Company's unopposed motion for leave to file a complaint-in-intervention is GRANTED. An employer who has paid workers' compensation benefits to an employee injured on the job has the right to intervene in the employee's lawsuit against the person causing such injury. (Lab. Code, § 3852.) If the employer is insured against liability for compensation with any insurer, such insurer is subrogated to the rights of the employer and may enforce any such subrogated rights in its own name. (Ins. Code, § 11662.) Thus, an employer's workers' compensation carrier also has the right to intervene. (See <i>Bailey v. Reliance Ins. Co.</i> (2000) 79 Cal.App.4th 449, 454 ["various provisions of the Labor Code seek to ensure that the employer (defined to include the insurance carrier under Lab. Code, § 3850) will be reimbursed for amounts paid to the injured employee which the employee has also recovered from a third party tortfeasor"].) If an action is brought by the employer or employee, the other may, at any time before trial on the facts, join as party plaintiff. (Lab. Code, § 3853.) Starstone National Insurance Company has a direct pecuniary interest in this action because it paid workers' compensation benefits to or on behalf of Plaintiff and seeks reimbursement through subrogation. (Declaration of Matthew Soleimanpour, ¶ 2.) Accordingly, it has a statutory right to intervene and a direct financial interest in this litigation. The motion is timely, as Labor Code section 3853 expressly permits intervention at any time prior to trial, and there is no indication of prejudice to the existing parties. Accordingly, the motion is granted. Starstone National Insurance Company shall electronically file its proposed complaint-in-intervention (Soleimanpour Decl., Ex. A) within 10 days of service of notice of this ruling and shall comply with Code of Civil Procedure section 387, subdivision (e), in serving the complaint-in-intervention. Moving party shall give notice of the ruling.